



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 13 1990

DOT-E 10467
(SECOND REVISION)

1. ACF, Industries Incorporated is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a nonflammable gas for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a DOT Specification 105A500W tank car tank with a defective vapor valve for the transportation of chlorine, and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on ACF Industries Incorporated's application of September 13, 1990, submitted in accordance with 49 CFR 107.113 and 107.115 and a determination that it is necessary for protection of life or property and supplemental letter dated September 24, 1990 and December 4, 1990.

3. HAZARDOUS MATERIALS (Descriptor and class). Chlorine, classed as a nonflammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Chlorine.

5. REGULATION AFFECTED. 49 CFR 173.31 (b)(1) and (b)(3).

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a DOT Specification 105A500W tank car tank, ACFX 86488, with a defective vapor angle valve, which has been equipped with a Chlorine "C" kit to prevent the emission of chlorine vapors.

b. The manway protective housing cover while opened must be chained or otherwise fastened so that it cannot change position during transportation.

8. SPECIAL PROVISIONS.

a. Shipment must be between Gary, Indiana and Vicksburg, Mississippi, a distance of 750 miles, using the most direct route available.

b. The tank car must be marked "DOT-E 10467" above the DOT specification number in at least four inch letters on a contrasting background.

c. The Federal Railroad Administration (FRA) is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street S.W.
Washington D.C. 20590
(202) 366-9178 or 366-0549

d. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. January 15, 1991.

Issued at Washington, D.C.:

8/11 *Alan I. Roberts*
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

DEC 13 1990

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590.
Attention: Exemptions Branch.

Dist: FRA.